



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2986: department of environmental quality; programs

GRIFFIN FLOOR AMENDMENT

1. Makes technical changes.

GRIFFIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2986
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 44-1322, Arizona Revised Statutes, is amended to
3 read:

4 44-1322. Disposal of lead acid batteries

5 A. The disposal of lead acid batteries in landfills and the
6 incineration of those batteries is prohibited.

7 B. An owner or operator of a solid waste disposal facility shall
8 not knowingly accept a lead acid battery for disposal.

9 C. A lead acid battery shall be discarded or disposed of only as
10 follows:

11 1. A lead acid battery retailer or wholesaler may deliver a lead
12 acid battery to any one of the following:

13 (a) A permitted secondary lead smelter.

14 (b) A battery manufacturer.

15 (c) A collection or recycling facility ~~authorized by the federal~~
16 ~~environmental protection agency or the department of environmental~~
17 ~~quality.~~

18 (d) In the case of battery retailers only, an agent of a battery
19 wholesaler.

20 2. A person other than a lead acid battery retailer or wholesaler
21 may deliver a lead acid battery to any one of the following:

22 (a) A lead acid battery retailer or wholesaler.

23 (b) A permitted secondary lead smelter.

24 (c) A collection or recycling facility ~~authorized by the federal~~
25 ~~environmental protection agency or the department of environmental~~
26 ~~quality.~~

1 D. The director of the department of environmental quality shall
2 register ~~[collection and]~~ recycling facilities that accept lead acid
3 batteries. ~~The director shall require collection and recycling facilities~~
4 ~~that handle lead acid batteries to pay an initial registration fee and~~
5 ~~annual fee established by rule. The director shall deposit, pursuant to~~
6 ~~sections 35-146 and 35-147, registration fees in the solid waste fee fund~~
7 ~~established by section 49-881.~~

8 Sec. 2. Section 49-501, Arizona Revised Statutes, is amended to
9 read:

10 49-501. Unlawful open burning; exceptions; civil penalty;
11 definition

12 A. Notwithstanding the provisions of any other section of this
13 article:

14 1. It is unlawful for any person to ignite, cause to be ignited,
15 permit to be ignited, or suffer, allow, or maintain any open outdoor fire
16 except as provided in this section.

17 2. From May 1 through September 30 each year, it is unlawful for
18 any person to ignite, cause to be ignited, permit to be ignited or suffer,
19 allow or maintain any open outdoor fire in area A as defined in section
20 49-541.

21 B. The following fires are excepted from this section:

22 1. Fires used only for cooking ~~of~~ food, ~~or for~~ providing warmth for
23 human beings or ~~the~~ branding ~~of~~ animals or ~~the use of~~ USING orchard
24 heaters for the purpose of frost protection in farming or nursery
25 operations.

26 2. Any fire set or permitted by any public officer in the
27 performance of official duty, if such fire is set or permission given for
28 the purpose of weed abatement, the prevention of a fire hazard, or
29 instruction in the methods of fighting fires.

30 3. Fires set by or permitted by the director of the department of
31 agriculture or county agricultural agents of the county for the purpose of
32 disease and pest prevention.

33 4. Fires set by or permitted by the federal government or any of
34 its departments, agencies or agents or the state or any of its agencies,
35 departments or political subdivisions for the purpose of watershed
36 rehabilitation or control through vegetative manipulation.

37 5. Fires permitted by any rule or regulation issued pursuant to
38 this article, by any conditional permit issued by a hearing board
39 established under this article or by any rule or conditional permit issued
40 pursuant to article 2 of this chapter when the department of environmental
41 quality pursuant to section 49-402 has assumed jurisdiction of the county
42 in which the fire is located.

43 6. Fires set for the disposal of dangerous materials where there is
44 no safe alternate method of disposal.

45 C. Permission for the setting of any fire given by a public officer
46 in the performance of official duty under subsection B, paragraph 2, 3 or
47 4 of this section shall be given in writing and a copy of the written

1 permission shall be transmitted immediately to the director of
2 environmental quality and the control officer of the county, district or
3 region in which such fire is allowed. The setting of any such fire shall
4 be conducted in a manner and at such time as approved by the control
5 officer or the director of environmental quality, unless doing so would
6 defeat the purpose of the exemption.

7 D. Notwithstanding section 49-107, IF THE DEPARTMENT ASSUMES
8 JURISDICTION OVER [OPEN] BURNING IN A COUNTY PURSUANT TO SECTION 49-402,
9 the director may delegate authority for the issuance of open burning
10 permits to a county, city, town or fire district. A county, city, town or
11 fire district that has been delegated authority for the issuance of open
12 burning permits may assign the issuance of these permits to a private fire
13 protection service provider that performs fire protection services within
14 that county, city, town or fire district. Any private fire protection
15 service provider that is authorized to issue open burning permits pursuant
16 to this subsection shall maintain a copy of all currently effective
17 permits issued, including a means of contacting the person authorized by
18 the permit to set the fire in the event that an order to extinguish the
19 open burning is issued. Permits issued pursuant to this subsection shall
20 contain both of the following:

21 1. Conditions that limit the manner and time of setting the fire
22 and that are consistent with this section and rules adopted pursuant to
23 this section.

24 2. A provision that all burning be extinguished at the discretion
25 of the director or the director's authorized representative during periods
26 of inadequate atmospheric smoke dispersion, periods of excessive
27 visibility impairment that could adversely affect public safety or periods
28 when smoke is blown into populated areas so as to create a public
29 nuisance.

30 E. The director may issue a general permit to allow persons engaged
31 in farming or ranching on forty acres or more in an unincorporated area to
32 burn household waste, as defined in section 49-701, that is generated on
33 site, if no household waste collection and disposal service is available.
34 The general permit shall include the following:

35 1. Conditions governing the method, manner and times for burning.

36 2. Limitation on materials ~~which~~ THAT may be burned, including a
37 prohibition on burning of materials ~~which~~ THAT generate noxious fumes.

38 3. A requirement that any person seeking coverage under the general
39 permit shall register with the director on a form prescribed by the
40 director. ~~upon~~ ON receipt of a registration form, the director shall
41 notify the county in which the farm or ranch is located of such
42 registration.

43 4. A statement that the director, a local air pollution control
44 officer, or any other public officer may order the extinguishment of
45 burning or may prohibit burning during periods of inadequate smoke
46 dispersion or excessive visibility impairment or at other times when
47 public health or safety could be adversely affected.

1 F. ~~Nothing in~~ This section ~~is intended to~~ DOES NOT permit any
2 practice ~~which~~ THAT is a violation of any statute, ordinance, rule or
3 regulation in a county with a population in excess of one million two
4 hundred thousand persons. Notwithstanding any other law, such a county
5 shall prohibit by ordinance the use of wood burning chimineas, outdoor
6 fire pits and similar outdoor fires on those days for which the county has
7 issued a no burn day restriction.

8 G. A person who violates ~~any provision of~~ this section may be
9 served a notice of violation and be subject to the enforcement provisions
10 of this article to the same extent as a person violating any rule or
11 regulation adopted pursuant to this article, except that:

12 1. A violation that lasts ~~no~~ NOT more than twenty-four hours and
13 that is the first violation committed by that person is subject to a civil
14 penalty of ~~no~~ NOT more than ~~five hundred dollars~~ \$500.

15 2. A VIOLATION ~~[PURSUANT TO SUBSECTION D OF THIS SECTION] [THAT IS~~
16 ~~SUBJECT TO THE DEPARTMENT'S JURISDICTION PURSUANT TO SECTION 49-402] IS~~
17 ~~SUBJECT TO ENFORCEMENT AS PROVIDED IN ARTICLE 2 OF THIS CHAPTER.~~

18 H. For the purposes of this section, "open outdoor fire" means any
19 combustion of combustible material of any type outdoors, in the open where
20 the products of combustion are not directed through a flue. For the
21 purposes of this subsection, "flue" means any duct or passage for air,
22 gases or the like, such as a stack or chimney.

23 Sec. 3. Section 49-802, Arizona Revised Statutes, is amended to
24 read:

25 49-802. Federal used oil program; incorporation by reference;
26 rulemaking

27 A. The department shall administer A USED OIL PROGRAM. THE PROGRAM
28 SHALL BE NOT MORE STRINGENT THAN 42 United States Code section 6935, ~~as~~
29 ~~amended on January 1, 1997, as the used oil program for this state. For~~
30 ~~that purpose, AND~~ 40 Code of Federal Regulations part 279. ~~, as amended on~~
31 ~~January 1, 1997, 40 CODE OF FEDERAL REGULATION PART 279~~ is adopted by
32 reference. For purposes of this program, the United States, the
33 environmental protection agency and the administrator shall be applied to
34 mean this state, the department and the director, respectively.

35 B. The department may adopt rules for the administration of the
36 federal program. Rules adopted pursuant to this subsection shall not be
37 more stringent than or conflict with 40 Code of Federal Regulations
38 part 279. The department shall require an annual registration fee
39 established by rule for handlers of used oil that are required to obtain a
40 United States environmental protection agency identification number
41 pursuant to 40 Code of Federal Regulations part 279. The department shall
42 deposit, pursuant to sections 35-146 and 35-147, fees in the solid waste
43 fee fund established by section 49-881.

44 C. The following requirements apply in addition to 40 Code of
45 Federal Regulations part 279:

1 1. A used oil collection center, as defined in 40 Code of Federal
2 Regulations part 279, shall register with the department by obtaining an
3 identification number from the department. A request for an
4 identification number shall include:

5 (a) The company name.

6 (b) The name of the owner of the company.

7 (c) The mailing address and telephone number of the company.

8 (d) The location of the collection center.

9 (e) A description of the type of used oil activity at the company.

10 2. A person who sends used oil fuel to a person who burns the used
11 oil fuel for energy recovery shall certify to the burner that the used oil
12 fuel has been analyzed or otherwise tested for compliance with the used
13 oil specifications in 40 Code of Federal Regulations part 279.

14 3. Each used oil fuel transporter, used oil fuel marketer and used
15 oil processor and re-refiner, as defined in 40 Code of Federal Regulations
16 part 279, shall submit to the department a written report annually. The
17 report shall be submitted within thirty days after the end of the calendar
18 year to which the report applies, and it shall contain a copy of the
19 tracking information required to be kept pursuant to 40 Code of Federal
20 Regulations part 279 or a summary of such tracking information on a
21 reporting form supplied by the department.

22 4. Each person who burns used oil fuel in devices identified in 40
23 Code of Federal Regulations section 279.61(a)(1) through (3) shall submit
24 to the department a written annual report. The report shall be submitted
25 to the department by February 1 for the previous calendar year and shall
26 contain the following information:

27 (a) The name, address and telephone number of the person reporting.

28 (b) The name, address and telephone number of the burner facility.

29 (c) The United States environmental protection agency
30 identification number of the burner facility.

31 (d) The total volume of on-specification used oil burned.

32 (e) The period being reported.

33 (f) The total volume of self-generated used oil burned on site.

34 (g) The total volume of used oil fuel burned.

35 (h) A summary of the tracking information required to be kept
36 pursuant to 40 Code of Federal Regulations part 279.

37 5. Used oil fuel marketers and used oil fuel burners shall label
38 all tanks that store on-specification used oil with the words
39 "on-specification used oil". The department may sample and test used oil
40 or used oil fuel to determine its properties or characteristics as
41 prescribed in this article and rules adopted pursuant to this article.

42 6. A household "do-it-yourselfer" used oil generator, as defined
43 under 40 Code of Federal Regulations part 279, shall send its used oil to
44 a "do-it-yourselfer" collection station, a household hazardous waste
45 collection center, a used oil collection center, a used oil fuel marketer
46 or a used oil processor or refiner.

1 D. In administering this section or in adopting or administering
2 rules pursuant to this section, the department shall maintain the level of
3 discretion that is permitted pursuant to applicable federal rules.

4 E. Any client names or related identifying data required to be
5 submitted to the department pursuant to this section are confidential.

6 Sec. 4. Section 49-836, Arizona Revised Statutes, is amended to
7 read:

8 49-836. Solid waste landfill disposal fees

9 A. Each operator of a solid waste landfill or facility shall make
10 the fee payments required by this section as determined by the
11 department. Monies from fees shall be deposited in the recycling fund
12 established by section 49-837 ~~and the solid waste fee fund established by~~
13 ~~section 49-881~~. Fees shall be calculated and paid as follows until the
14 effective dates of rules adopted pursuant to subsection G of this section:

15 1. A disposal fee of \$.25 for each six cubic yards of uncompacted
16 solid waste, \$.25 for each three cubic yards of compacted solid waste or
17 \$.25 per ton of solid waste received at landfills regulated by the
18 department. ~~From and after June 30, 2005, all \$.25 collected in disposal~~
19 ~~fees shall be deposited in the recycling fund.~~

20 2. A solid waste landfill that receives only waste generated on
21 site shall compute the fee by using one of the following methods:

22 (a) By actual volume or weight.

23 (b) By estimate based on landfill capacity use, volume or number of
24 waste loads or any other reasonable means for approximating the volume or
25 weight of disposed waste.

26 3. Facilities that generate waste from recycling solid waste,
27 effluent from a secondary wastewater treatment plant or wastewaters shall
28 pay one-half of the fee calculated pursuant to paragraph 1 of this
29 subsection. The maximum annual amount paid by a facility for on-site
30 disposal of waste generated from recycling shall not exceed \$15,000. The
31 fee for these facilities may be computed based on the dry or dewatered
32 weight or volume of the waste generated from recycling.

33 B. Each fee payment shall be accompanied by a form prepared and
34 furnished by the department and completed by the operator. The form shall
35 state the total volume or weight of solid waste disposed of at that
36 landfill during the payment period and shall provide any other information
37 deemed necessary by the department. The form shall be signed by the
38 operator.

39 C. A person who for a fee disposes of waste in a solid waste
40 landfill that is not regulated by the department shall keep accurate
41 records of the waste disposed of in those landfills and shall remit a fee
42 to the department at the same rate and in the same manner as provided in
43 subsection A of this section or rules adopted pursuant to subsection G of
44 this section.

45 D. For solid waste landfills that are operated pursuant to section
46 49-741 and that do not have on-site operators or scales, the fee shall be
47 based on a formula that multiplies the population of the political

1 subdivisions served by the landfill by \$.07. ~~From and after June 30,~~
2 ~~2005, all fees shall be deposited in the recycling fund.~~ The fee shall be
3 paid in the same manner as provided in subsection A of this section or
4 rules adopted pursuant to subsection G of this section.

5 E. This section or any rules adopted pursuant to subsection G of
6 this section do not apply to:

7 1. Persons disposing of a load containing less than six cubic yards
8 of uncompacted solid waste or three cubic yards of compacted solid waste.

9 2. A site used solely for the reclamation of land through the
10 introduction of landscaping rubble or inert material.

11 3. Material produced in connection with a mining or metallurgical
12 operation.

13 F. Solid waste management service companies and agencies affected
14 by the landfill disposal fees established by this section may adjust the
15 fees charged to customers by passing through to the customers the
16 additional costs.

17 G. The department shall establish by rule the solid waste landfill
18 disposal fees.

19 Sec. 5. Section 49-881, Arizona Revised Statutes, is amended to
20 read:

21 49-881. Solid waste fee fund; uses; exemption

22 A. The solid waste fee fund is established. The director shall
23 administer the fund. The fund consists of legislative appropriations,
24 donations, gifts, grants, registration fees collected pursuant to sections
25 44-1303 and 44-1304.01, waste tire administrative monies distributed
26 pursuant to section 44-1305, subsection B, paragraph 1, ~~lead acid battery~~
27 ~~collection and recycling fees collected pursuant to section 44-1322,~~
28 licensure fees collected pursuant to section 49-104, subsection B,
29 paragraph 14, subdivision (b), solid waste general permit fees collected
30 pursuant to section 49-706, solid waste landfill registration fees from
31 section 49-747, licensure fees collected pursuant to section 49-761,
32 subsection D, paragraphs 2 and 3 and subsections H, J and M, solid waste
33 fees collected pursuant to section 49-762.03, subsection F, USED OIL
34 HANDLER FEES COLLECTED PURSUANT TO section 49-802, subsection B, special
35 waste management plan fees collected pursuant to section 49-857, special
36 waste management fees collected pursuant to section 49-863, private
37 consultants expedited plan review fees collected pursuant to section
38 49-762.03, subsection G, self-certification filing fees collected pursuant
39 to section 49-762.05, subsection H, ~~solid waste landfill disposal fees~~
40 ~~collected pursuant to section 49-836,~~ special waste fees collected
41 pursuant to section 49-855, ~~subsection C, paragraph 2~~ and coal combustion
42 residuals permit processing fees and annual fees collected pursuant to
43 section 49-891.

44 B. Monies in the fund are subject to legislative appropriation for
45 solid waste control programs established in the funding sources pursuant
46 to subsection A of this section and as determined by the director.

1 C. On notice from the director, the state treasurer shall invest
2 and divest monies in the fund as provided in section 35-313, and monies
3 earned from investment shall be credited to the fund. Monies deposited in
4 the fund are exempt from the provisions of section 35-190 relating to
5 lapsing of appropriations.

6 Sec. 6. Laws 2021, chapter 27, section 9, as amended by Laws 2023,
7 chapter 78, section 1, is amended to read:

8 Sec. 9. Conditional enactment

9 A. Section 49-542, Arizona Revised Statutes, as amended by Laws
10 2021, chapter 27, section 3, and section 49-542.03, Arizona Revised
11 Statutes, as amended by laws 2021, chapter 27, section 4, do not become
12 effective unless on or before July 1, ~~2027~~ 2029 the United States
13 environmental protection agency approves the proposed modifications to the
14 vehicle emissions testing program protocols as part of the state
15 implementation plan for air quality.

16 B. The director of the department of environmental quality shall
17 notify in writing the director of the Arizona legislative council on or
18 before September 1, ~~2027~~ 2029 either:

- 19 1. Of the date on which the condition was met.
- 20 2. That the condition was not met.

21 Sec. 7. Laws 2017, chapter 295, section 3, as amended by Laws 2022,
22 chapter 177, section 12 and Laws 2024, chapter 70, section 1, is amended
23 to read:

24 Sec. 3. Conditional enactment; notice

25 A. Section 3-3493, Arizona Revised Statutes, as amended by laws
26 2017, chapter 295, section 2, does not become effective unless on or
27 before July 1, ~~2027~~ 2029 the United States environmental protection agency
28 approves the proposed modifications to the gasoline fuel formulation
29 requirements as part of the state implementation plan for air quality.

30 B. The director of the department of environmental quality shall
31 notify in writing the director of the Arizona legislative council on or
32 before October 1, ~~2027~~ 2029 either:

- 33 1. Of the date on which the condition was met.
- 34 2. That the condition was not met.

35 Enroll and engross to conform

36 Amend title to conform

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